

24X7 ON Court in Kollam
Ramesh v/s Priya
CMP No. 3/2026
Complaint under S. 138 of the Negotiable Instruments Act

Synopsis

Parties

Complainant Name	Accused Name
Ramesh Kumar Sharma	Priya Mehta

Complainant's Advocate Name
Sunita Rao

Cheque details

Date on cheque	Amount	Cheque number
15 January 2025	₹4,50,000	045231
Bank Name	Bank Branch	
HDFC Bank	Andheri West, Mumbai	

Dishonour

Date of presentation	Date on return memo	Return reason
20 January 2025	22 January 2025	Insufficient Funds
Bank Branch (Complainant)		
SBI, Bandra West, Mumbai		

Demand Notice

Date of dispatch of demand notice	Mode of service	Tracking number
05 February 2025	Speed Post	EW123456789IN
Whether delivered?	Date of delivery	Has the accused replied to the demand notice?
Yes	08 February 2025	No

Cause of Action

Date of cause of action	Jurisdiction invoked under	Is there any other cheque dishonour complaint pending between the same parties?
23 February 2025	Section 142(2) Bandra West, Mumbai - complainant's bank branch	No

Prayer/ Relief sought

Punishment under S.138 NI Act; compensation of ₹9,00,000 (twice cheque amount); interim compensation of ₹1,12,500 under S.143A NI Act

1. Party details

1.1. Complainant

Complainant 1

Complainant Type Individual	Full Name Ramesh Kumar Sharma	Age 44
Mobile Number +919999999999	Email Address aditi.phadnis16@gmail.com	Permanent address 11, Priyanka CHS, Kandivali West, Mumbai 400067
Present Address 11, Priyanka CHS, Kandivali West, Mumbai 400067		

POA for Complainant 1

Full Name Ayushi Singhal	Age 30	Mobile Number +919077229222
Email Address ayushi@agami.in	Permanent Address B-112, Syracuse Town, Mumbai 400077	Present Address 11, Synden Towers, Mumbai 400077

Complainant 2

Complainant Type Entity	Type of Entity HUF	Entity Name Sithukumar Enterprises
Mobile Number +919819957290 +919819977290	Email Address contact@situkumar.com	Address Brazio Estate, Kerala, 651001

Authorized Representative for Complainant 2

Full Name Parvez Singh	Designation Legal Counsel	Age 50
Mobile Number +919819976522	Email Address parvez@situkumar.com	Address 56/A Wing, Sri Ram Towers, Mumbai 400078

1.2. Advocate (Complainant)

Advocate for Complainant 1, Complainant 2

Full Name Rashmi Singh Niyottam Chatterjee Mohammed Khan	Bar Registration K/001/XXX K/001/XXX K/001/XXX
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Advocate for Complainant 3

Full Name
Rashmi Singh

Bar Registration
K/001/XXX

1.3. Accused

Accused 1

Type
Individual

Full Name
Priya Mehta

Age
55

Mobile Number
+919877665522

Email Address
-

Address
Benzine Apartments, Kollam,
200172

Accused 2

Type
Entity

Type of Entity
Holding

Full Name
Karya Enterprises

Entity Contact Number
+91 9770889900

Email Address
contact@karya.com

Address
Karya Towers, Business District,
Kollam 200111

Persons Vicariously liable for the Company

Full Name

Designation

Siddhant Shah
Manya Sri

Director, Accounts
Director, Finance

2. Case details

2.1. Cheque details

Cheque 1

Date on cheque
15 January 2025

Amount
₹4,50,000

Cheque number
045231

Bank Name
HDFC Bank

Bank Branch
Andheri West, Mumbai

Bank Account Number
50100234567890

2.2. Cheque return memo details

Cheque return memo 1

Date of presentation
20 January 2025

Date of return
22 January 2025

Return reason
Insufficient Funds

Date of receipt of information

about return
23 January 2025

2.3. Demand notice details

Demand Notice 1

Date of dispatch of demand
notice
05 February 2025

Mode of service
Speed Post

Tracking number
EW123456789IN

Whether delivered?
Yes

Date of delivery
08 February 2025

Has the accused replied to the
demand notice?
No

Has the Drawer made full or part
payment due under the cheque?
No

2.4. Nature of debt or liability

Nature of debt or other liability
Sale of goods contract - wheat

2.5. Jurisdiction

Was the cheque delivered for collection at a bank account?
Yes

Payee (Complainant) Bank Details

IFSC Code
KB000056

Bank Name
Kotak Mahindra Bank

Bank Branch
Bandra West, Mumbai

Police Station
Bandra West, Mumbai

Other cheque dishonour complaints between the same parties

Is there any other cheque dishonour complaint pending between the same parties?
Yes

Court Name
Chandigarh JFMC-I

Case Number
CMP 34/2025

2.6. Limitation Period

Date of cause of action
23 February 2025

Date of complaint filing
15 March

Duration of delay
20 days

Reason for praying condonation of delay

Admitted to the hospital for a month from 20 February, and could not contact the lawyer at this time

2.7. ADR

Would you like to settle the case outside the court through alternative methods of dispute resolution?

Yes

2.8. Other details

Any additional details

The complainant has been carrying out business with the accused for about 10 years now. All the cheques issued by the accused this year have been dishonoured.

2.9. Prayer/ Relief Sought

Interim Relief

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to:

Direct the Accused to pay interim compensation to the Complainant under Section 143A of the Negotiable Instruments Act, 1881, during the pendency of the trial, of a sum not exceeding 20% of the cheque amount i.e. Rs. 90,000, within 60 days of the order or such further period not exceeding 30 days as this Hon'ble Court may allow for sufficient cause shown

Final Relief

It is most respectfully prayed that this Hon'ble Court may be pleased to:

(a) Take cognizance of the offence committed by the Accused under Section 138 of the Negotiable Instruments Act, 1881;

(b) Issue process/summons against the Accused and direct him/her to appear before this Hon'ble Court;

(c) Upon trial, convict and sentence the Accused under Section 138 of the Negotiable Instruments Act, 1881, to imprisonment for a term which may extend to two years, or with fine which may extend to twice the amount of the cheque, or with both;

(d) Direct the Accused to pay compensation to the Complainant under Section 395 of the Bharatiya Nagarik Suraksha Sanhita, 2023, equivalent to the cheque amount along with interest @ 6% per annum from the date of dishonour;

(e) Grant such other and further relief(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

3. Evidence

3.1. List of witnesses

Witness 1

Full Name	Age	What will this witness prove?
Aditi Phadnis	40	Underlying transaction
Mobile Number	Email id	Address
+919999999999	aditi@gmail.com	678, Ghatkopar west, Mumbai - 700098

3.2. List of documents

S. No.	Document Name	Natively Digital
1.	Cheque	Yes
2.	Cheque return memo	Yes
3.	Demand notice	Yes
4.	Reply to the demand notice	Yes
5.	Complainant ID Card	Yes
6.	Power of Attorney	No
7.	Vakalatnama	No

4. Affidavit

I am the complainant / authorised representative of the complainant in the above case and am fully acquainted with the facts and circumstances of the case. I am competent and authorised to swear to this affidavit.

The accused issued the above cheque in discharge of a legally enforceable debt or liability. It has been dishonoured due to insufficiency of funds. A demand notice has been issued to the accused, but she/ he has failed to make the payment due under the cheque. All other requirements under Section 138 of the Negotiable Instruments Act, 1881 have been complied with.

I confirm that the demand notice was served on the last known correct address of the accused(s).

In accordance with Section 225 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that there is sufficient ground for proceeding against the accused.

In accordance with Section 223 and other relevant provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023, I confirm that the contents of this complaint are true and correct to the best of my knowledge, belief and information.

The physical or electronic records of the documents etc. produced by me with this complaint are in my lawful and proper custody and possession.

It is therefore humbly prayed that this Hon'ble Court may be pleased to take cognizance of the offence committed by the accused, and issue process to the accused.

Complainant (Full Name)

Advocate (Full Name)

Please turn over the page to see the documents uploaded by the Complainant.

LUDHIANA MAIN BRANCH

MIC: MICR 00001234567

PAY:

CUPEES:



Harpreet Singh

Harpreet Singh

P000123P 0012345678: C2231 14



State Bank of India

LUDHIANA MAIN BRANCH

Receipt No.: 011567

CHEQUE RETURN MEMO

Receipt No.: 011567

Cheque No.	000123	Date:	31.01.2026
Cheque Date	31.01.2026		
Drawer's Name	Harpreet Singh		
Drawee Bank + Branch.	State Bank of India, Ludhiana		
Payee's Name	Parth Sharma		
Amount	₹ 11,000/- Eleven Thousand Rupees Only		
Reason for Returning:	INSUFFICIENT FUNDS		

MICR: 141002002

IFSC: SBIN000033 Authorized Signatory